

HOUSE No. 5035

The Commonwealth of Massachusetts

PRESENTED BY:

David K. Muradian, Jr. and Michael O. Moore

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to Grafton's senior tax exemption.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David K. Muradian, Jr.</i>	<i>9th Worcester</i>	<i>1/28/2026</i>

HOUSE No. 5035

By Representative Muradian of Grafton and Senator Moore, a joint petition (accompanied by bill, House, No. 5035) of David K. Muradian, Jr., (by vote of the town) relative to the senior property tax exemption in the town of Grafton. Revenue. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to Grafton's senior tax exemption.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. With respect to each qualifying parcel of real property classified as class
2 one, residential in the town of Grafton, there shall be an exemption from the property tax in an
3 amount to be set annually by the select board as provided in section 3. The exemption shall be
4 applied to the domicile of the taxpayer only. For the purposes of this act, “parcel” shall mean a
5 unit of real property as defined by the board of assessors under the deed for the property and
6 shall include a condominium unit. The exemption provided for in this section shall be in addition
7 to any other exemptions allowed under the General Laws.

8 SECTION 2. The board of assessors of the town of Grafton may deny an application for
9 exemption if the board finds that the applicant has excessive assets that place the applicant
10 outside of the intended recipients of the senior exemption established pursuant to this act. Real
11 property shall qualify for the exemption pursuant to section 1 if the following criteria are met:

(i) the qualifying real property is owned and occupied by a person whose prior year's income would make the person eligible for the circuit breaker income tax credit pursuant to subsection (k) of section 6 of chapter 62 of the General Laws;

(ii) the qualifying real property is owned by a single applicant who was age 65 or older at the close of the previous year or jointly by persons who are 60 years of age or older; provided, that not less than 1 joint owner was age 65 or older at the close of the previous year;

(iii) the qualifying real property is owned and occupied by the applicant or joint applicants as their domicile;

(iv) the applicant, or at least 1 of the joint applicants, has been domiciled and owned a home in the town of Grafton for not less than 10 consecutive years before filing an application for the exemption;

(v) the maximum assessed value of the domicile is not greater than the prior year's maximum assessed value for qualification for the circuit breaker income tax credit pursuant to said subsection (k) of said section 6 of said chapter 62, as adjusted annually by the department of revenue; and

(vi) the board of assessors has approved the application for the exemption.

SECTION 3. The select board of the town of Grafton shall annually set the exemption amount provided for in section 1; provided, however, that the amount of the exemption shall be not less than 50 per cent and not more than 200 per cent of the amount of the circuit breaker income tax credit pursuant to subsection (k) of section 6 of chapter 62 of the General Laws for

which the applicant qualified in the previous year. The total amount exempted by this act shall be allocated proportionally within the tax levy on all residential taxpayers.

SECTION 4. A person who seeks to qualify for the exemption pursuant to section 1 shall, before the deadline established by the board of assessors of the town of Grafton, file an application, on a form adopted by the board of assessors, with the supporting documentation of the applicant's income and assets as described in the application. The application shall be filed each year for which the applicant seeks the exemption.

SECTION 5. No exemption shall be granted pursuant to this act until the department of revenue certifies a residential tax rate for the applicable tax year where the total exemption amount is raised by a burden shift within the residential tax levy.

SECTION 6. The exemption provided in this act shall expire 3 years after the effective date of this act; provided, however, that the town of Grafton may reauthorize the exemption for additional 3-year intervals by a vote of the legislative body of the town.

SECTION 7. This act shall take effect upon its passage.